

Tentative Rulings
June 16, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

15. *Bourgeois, et al, v. AJTGC Trucking, et al*, Case No. CIVSB2513207

Def. Sandslide Materials' Motion to Strike Portions of the Second Amended Complaint
6/16/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT** the motion to strike the prayer for punitive damages against Defendant Sandslide, at page 35, subsection D. Plaintiff will have 20 days leave to amend.

Case Summary

This is a wrongful death case arising out of an auto accident. Plaintiffs allege that on the morning of October 31, 2024, Defendant Rodriguez was driving a dump truck and hauling a sand-loaded trailer. The truck and trailer were owned by Defendant Gatica Genara (Genara). Plaintiffs allege Rodriguez was driving in the course and scope of his employment with Defendants AJTGC Trucking (AJTGC), Tri-State, Arreola Trucking (Arreola), and/or Gothic Landscape (Gothic).

Moreover, Plaintiffs allege that Defendant Rodriguez was driving on Highway 74 and travelling downhill at an unsafe speed. They further alleges that his brakes were either improperly installed, maintained, or utilized, and that he had a brake failure. Thus, as he rounded a curve, his vehicle overturned and the trailer crossed the centerline and struck an oncoming pickup truck, fatally injuring Plaintiffs' decedent. In that light, Plaintiffs filed the original Complaint on May 9, 2025. Relevant here, the operative Second Amended Complaint (SAC) was filed on March 9, 2026, and it alleges (1) negligence [wrongful death]; (2) negligence [survival action]; and (3) vicarious liability.

Statement of the Law

Code of Civil Procedure section 436(a), authorizes the Court to strike matters that are "irrelevant, false or improper." "Irrelevant" means any immaterial allegation in the complaint, and "immaterial" means (i) an allegation that is not essential to the statement of a claim or defense; (ii) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense; or (iii) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., §431.10(b)-(c).) Further, any part of a pleading that is not drafted or filed in conformity with the law may be stricken. (Code Civ. Proc., § 436(b).)

Analysis

Relevant here, Defendant Sandslide Materials Corp. (Sandslide) seeks to strike the prayer for punitive or exemplary damages stated in Plaintiffs' Prayer for Relief.

Punitive damages are available in instances in which the defendant is guilty of oppression, fraud, or malice. (See Civ. Code, § 3294(a) & (c)(1)-(3).) “Malice” is defined by statute as conduct “intended by the defendant to cause injury to plaintiff, or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others.” (Civ. Code, § 3294(c)(1).) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294(c)(2).) “Despicable conduct” is therefore a part of both “oppression” and “malice.” Despicable conduct is defined as “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.) Such conduct has been described as “[having] the character of outrage frequently associated with crime.” (*Ibid.*)

“[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) However, conclusory allegations will not be stricken when other factual allegations in the complaint lend to the conclusion that the conduct satisfies the requirements for punitive damages. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

Further, “accidentally harmful conduct cannot provide the basis for punitive damages under [California] law.” (*Simon v. San Paolo U.S. Holding Co., Inc.* (2005) 35 Cal.4th 1159, 1181.) California “cases have uniformly recognized that . . . even gross negligence, or recklessness is insufficient” to meet the extreme standard of conduct required to support punitive damages. (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 87.)

The SAC alleges that Defendant Sandslide, as a “licensed weighmaster” [SAC, ¶11] and “DOT regulated corporation” [SAC, ¶30], loaded Defendant Rodriguez’s truck “such that it weighed 79,400 lbs., dangerously in excess of the 73,001 GCVWR that the equipment was rated to safely haul.” (SAC, ¶49.) The SAC asserts that it was “readily apparent” to Sandslide that the truck was “dangerously overloaded” because the truck only had three axles and the manufacturer’s information that the truck was only rated at 73,001 lbs. was “present and visible to . . . Sandslide.” (SAC, ¶50.) Sandslide was “knowledgeable” that trucks loaded in excess of their safety rating “are more prone to overturn,” have problems with braking, and that it is illegal. (SAC, ¶75.) Despite knowing the dangers, Sandslide “knowingly overloaded the equipment” that created “an extremely dangerous hazardous situation for other road users wherein Sandslide knew it was likely that the weight of the equipment would cause a crash and seriously hurt or kill someone.” (SAC, ¶¶76-77.)

California “cases have uniformly recognized that . . . even gross negligence, or recklessness is insufficient” to meet the extreme standard of conduct required to support punitive damages. (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 87.) Although Plaintiffs allege that the truck’s weight rating was “visible and available” to Sandslide, there are no allegations that the

Sandslide employees were aware of this information and loaded the truck in willful or conscious disregard of such requirements. Therefore, the factual allegations are insufficient to support the conclusory assertion that Sandslide knew that the weight of this truck would “likely” cause it to crash.

16. *Melendez v. Kennedy, et al*, Case No. CIVSB2530506
Specially Appearing Defendant Kennedy’s Motion to Quash Service of Summons and Complaint
6/16/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Evidentiary Objections: The Court would **SUSTAIN** Plaintiff’s evidentiary objection numbers 1 and 3. The Court would **OVERRULE** objection numbers 2 and 4.

As to the Motion: The Court would **DENY**.

Case Summary

This is a motor vehicle accident case. Plaintiff alleges that on October 18, 2023, Defendants negligently operated their vehicles by driving at an unsafe speed and caused an automotive accident in Fontana. Plaintiff alleges he incurred injuries and damages. As such, he filed a suit on October 16, 2025, alleging causes of action for (1) motor vehicle and (2) general negligence.

Summary of the Law

The service of a summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*MJS Enterprises Inc. v. Superior Court* (1984) 153 Cal.App.3d 555, 557.) Without substantial compliance with the statutory requirements for service of summons personal jurisdiction is not conferred, even if the defendant has notice of the litigation. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.) A defendant on or before the last day to plead, or any further time that the court for good cause allows, may bring a motion to quash service of summons because the court lacks jurisdiction. (Code Civ. Proc., § 418.10(a)(1).) When challenging service by a motion to quash, a plaintiff bears the burden of proving by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant by proving the facts requisite to effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

Analysis

Here, Defendant Kennedy specially appears and moves to quash service.

Plaintiff's counsel testifies that the address for service was obtained from the Traffic Collision Report, which identified Defendant Kennedy's address. (McFadden Decl., ¶13.) Further, beginning as of October 16, 2025, Plaintiff retained an agency to effectuate service, and on November 4, 9, 13, and 15, of 2025, the agency attempted service. On December 5, 2026, the agency completed and executed two declarations to assert "Reasonable Diligence" regarding service attempts on Kennedy. (McFadden Decl., ¶12 & Exh. A.) Thereafter, in February of 2026, Plaintiff retained another service to work on service of Defendant Kennedy. That agency used a registered process server and utilized a "skip trace" to verify Defendant Kennedy's address. (McFadden Decl., ¶¶4-5 & Exh. B.) Attempts were made at service on February 20, 21, and 22, 2026.

Ultimately, Plaintiff's agency indicated a successful service on February 23, 2026, at 7:16 AM. On March 13, 2026, Plaintiff filed a *Proof of Service* (POS) indicating substitute service having occurred as to Defendant Kennedy. The substitute service – which was effectuated by a registered process server – indicated that it was served on Defendant's brother and co-occupant. When service is done by a registered process server, there is a rebuttable presumption as to the stated facts. If the presumption applies, then the defendant bears the burden to produce evidence of non-service. (*American Expr. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Defendant Kennedy was required to rebut the presumption of proper service arising from the process server's declaration with evidence that he was not so served. (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.) However, Defendant Kennedy did *not* present any evidence demonstrating that he did not live at the service address; that Robert "Doe" could not accept substitute service for him; or anything else along those lines. Rather, the only "evidence" presented is an attorney declaration stating that Defendant Kennedy did not live at the address in question. However, this assertion was made without any foundation and was not based on personal knowledge. In total, Defendant Kennedy failed to rebut the presumption of correct service and failed to produce evidence of non-service.
